

M/S Savari Ice Factory v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 December 2013 · WRIT - C No. 66886 of 2013 · **Liberty to apply under clause 6.14; authority to decide within two months.**

HEADNOTE

The High Court will not itself grant installment facility for electricity dues. Clause 6.14 of the U.P. Electricity Supply Code, 2005 leaves that facility for a consumer in financial distress to the authority concerned. The writ petitioner was given liberty to apply under clause 6.14, with a direction that any such application be decided in accordance with law within two months.

FACTUAL SUMMARY

M/s Savari Ice Factory filed a writ petition against U.P. Power Corporation Ltd. and others before the Allahabad High Court in respect of an outstanding electricity amount. When the petition was taken up, counsel for the petitioner stated that the consumer was prepared to pay the entire amount in question but sought installment facility. The respondents were represented. The Court was not asked to quash the demand on merits, but to extend installments for payment of the amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility in financial distress

HOLDING

Under clause 6.14 of the U.P. Electricity Supply Code, 2005, installment facility for a consumer in financial distress may be extended by the authority concerned, not by the High Court. The Court declined to itself accord installments and granted liberty to apply under clause 6.14; any such application is to be dealt with and decided in accordance with law on the records within two months of production of a certified copy of the order. ¶ 1

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Clause 6.14 permits installment facility where the consumer is in financial distress, but the High Court will not itself extend it; the consumer must apply to the authority concerned. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS IN FINANCIAL DISTRESS AND SHOULD BE GRANTED INSTALLMENT FACILITY UNDER CLAUSE 6.14

Left to the authority concerned to decide in accordance with law on the records. ¶ 1

NOT DECIDED — MERITS OF THE OUTSTANDING ELECTRICITY AMOUNT

Not examined; the petitioner offered to pay the entire amount if installments were extended. ¶ 1